

A /C/C/C!JLombard
~ If Nibhaye Vaade - - -
PRIVATE CAR PACKAGE POLICY WORDING
STANDARD FORM FOR PRIVATE CAR PACKAGE POLICY
respect of any one accident.

Whereas the insured by a proposal and declaration dated as stated in the Schedule which shall be the basis of this contract and is deemed to be incorporated herein has applied to the Company for the insurance hereinafter contained and has paid the premium mentioned in the schedule as consideration for such insurance in respect of accidental loss or damage occurring during the period of insurance.

The insured may authorise the repair of the vehicle necessitated by damage for which the Company may be liable under this Policy provided that :
a. The estimated cost of such repair including replacements, if any, does not exceed ` 500/-;
NOW THIS POLICY WITNESSETH
b. The Company is furnished forthwith with a detailed estimate of the cost of repairs; and
That subject to the Terms Exceptions and Conditions contained herein or endorsed or expressed hereon;
c. The insured shall give the Company every assistance to see that such repair is necessary and the charges are reasonable.

SECTION I. LOSS OF OR DAMAGE TO THE VEHICLE INSURED

The Company will indemnify the insured against loss or damage to the vehicle insured hereunder and / or its accessories whilst thereon
SUM INSURED, INSURED'S DECLARED VALUE (IDV)
The Insured's Declared Value (IDV) of the vehicle will be deemed to be the 'SUM INSURED' for the purpose of this policy which is fixed at the commencement of each policy period for the insured vehicle.

1. By fire explosion self ignition or lightning ;
2. By burglary housebreaking or theft ;
The IDV of the vehicle (and accessories if any fitted to the vehicle) is to be fixed on the basis of the manufacturer's listed selling price of the brand and model as the vehicle insured at the commencement of insurance/renewal and adjusted for depreciation (as per schedule below).

3. By riot and strike;
4. By earthquake (fire and shock damage);
5. By flood typhoon hurricane storm tempest inundation cyclone hailstorm frost;
6. By accidental external means;
7. By malicious act;
The schedule of age-wise depreciation as shown below is applicable for the purpose of Total Loss/Constructive Total Loss (TL/CTL) claims only.

8. By terrorist activity;
THE SCHEDULE OF DEPRECIATION FOR FIXING IDV OF THE VEHICLE
9. Whilst in transit by road rail inland-waterway lift elevator or air;
AGE OF VEHICLE
10 By landslide rockslide.

Subject to a deduction for depreciation at the rates mentioned below in respect of

parts replaced :

1. For all rubber/ nylon / plastic parts, tyres and tubes, batteries and air bags -50%
2. For fibre glass components -30%
3. For all parts made of glass -Nil
4. Rate of depreciation for all other parts including wooden parts will be as per the following schedule.

AGE OF VEHICLE

Nil

Exceeding 6months but not exceeding 1 year

5%

Exceeding 1 year but not exceeding 2 years

10%

Exceeding 2 years but not exceeding 3 years

15%

Exceeding 3 years but not exceeding 4 years

25%

Exceeding 4 years but not exceeding 5 years

35%

Exceeding 5 years but not exceeding 10 years

40%

Exceeding 10 years

50%

Not exceeding 6 months

5%

Exceeding 6 months but not exceeding 1 year

15%

Exceeding 1 year but not exceeding 2 years

20%

Exceeding 2 years but not exceeding 3 years

30%

Exceeding 3 years but not exceeding 4 years

40%

Exceeding 4 years but not exceeding 5 years

50%

IDV of vehicles beyond 5 years of age and of obsolete models of the vehicles (i.e. models which the manufacturers have discontinued to manufacture) is to be

determined on the basis of an understanding between the insurer and the insured.

% OF DEPRECIATION

Not exceeding 6months

% OF DEPRECIATION

FOR FIXING IDV

IDV shall be treated as the .Market Value. throughout the policy period without any

further depreciation for the purpose of Total Loss (TL) / Constructive Total Loss (CTL)

claims.

The insured vehicle shall be treated as a CTL if the aggregate cost of retrieval and /

or repair of the vehicle,

subject to terms and conditions of the policy, exceeds 75% of the IDV of the vehicle.

LIABILITY TO THIRD PARTIES

1. Subject to the limits of liability as laid down in the Schedule hereto the Company

will indemnify the insured in the event of an accident caused by or arising out of

the use of the vehicle against all sums which the insured shall become legally

liable to pay in respect of :-

5. Rate of Depreciation for Painting: In the case of painting, the depreciation rate of 50% shall be applied only on the material cost of total painting charges.

In

case of a consolidated bill for painting charges, the material component shall be

considered as 25% of the total painting charges for the purpose of applying the depreciation.

a. Death of or bodily injury to any person including occupants carried in the vehicle (provided such occupants are not carried for hire or reward) but except so far as it is necessary to meet the requirements of Motor Vehicles Act, the Company shall not be liable where such death or injury arises out of and in the course of the employment of such person by the insured.

The Company shall not be liable to make any payment in respect of :a.

Consequential loss, depreciation, wear and tear, mechanical or electrical breakdown, failures or breakages;

b. Damage to property other than property belonging to the insured or held in trust or in the custody or control of the insured.

b. Damage to tyres and tubes unless the vehicle is damaged at the same time in which case the liability of the company shall be limited to 50% of the cost of replacement and

2. The Company will pay all costs and expenses incurred with its written consent.

3. In terms of and subject to the limitations of the indemnity granted by this

section to the insured, the Company will indemnify any driver who is driving the vehicle on the insured's order or with insured's permission provided that such driver shall as though he/she was the insured observe fulfill and be subject

to the terms exceptions and conditions of this Policy in so far as they apply.

c. Any accidental loss or damage suffered whilst the insured or any person driving the vehicle with the knowledge and consent of the insured is under the influence of intoxicating liquor or drugs.

In the event of the vehicle being disabled by reason of loss or damage covered under

this Policy the Company will bear the reasonable cost of protection and removal to

the nearest repairer and redelivery to the insured but not exceeding in all 1500/-in

4. In the event of the death of any person entitled to indemnity under this policy